

SENATE BILL 1987

By Haile

AN ACT to amend Tennessee Code Annotated, Title 36
and Title 37, relative to children.

BE IT ENACTED BY THE GENERAL ASSEMBLY OF THE STATE OF TENNESSEE:

SECTION 1. Tennessee Code Annotated, Title 36, Chapter 1, Part 1, is amended by
adding the following as a new section:

(a) In any contested proceeding under this part in which the court determines
that the appointment of a guardian ad litem (GAL) is necessary, the court shall order the
child to be evaluated by at least one (1) qualified expert, unless the court makes written
findings that such an examination is unnecessary to determine the child's best interests.

(b) The expert examination must be conducted by one (1) or more of the
following licensed professionals:

(1) A medical doctor;

(2) A psychiatrist;

(3) A psychologist;

(4) A licensed clinical social worker;

(5) A licensed professional counselor with mental health service provider
designation; or

(6) Any other mental health professional authorized by law to conduct
diagnostic evaluations of minors.

(c) The expert shall submit a sworn written report to the court and to the parties.

The report must include:

(1) A summary of the child's relevant medical, psychological, emotional,
and developmental history as permitted within the examiner's scope of practice;

(2) A description of the child's present mental, physical, emotional, and behavioral condition, including any symptoms of trauma, coercion, alienation, or undue influence;

(3) An opinion stating:

(A) Whether further evaluation, treatment, or services are recommended;

(B) The type and scope of any recommended evaluation or treatment; and

(C) The clinical basis for such recommendations; and

(4) Any other matters the court deems necessary or advisable in the child's best interests.

(d) A sworn examination report submitted under this section constitutes prima facie evidence of the child's condition and of the factors relevant to determining the child's best interests, which may be rebutted by competent evidence or upon a showing that the report is incomplete, inaccurate, or unreliable.

(e) The GAL shall consider the expert report in formulating the GAL's best-interest recommendation. If the GAL's recommendation materially departs from the expert's conclusions, then the GAL shall explain the basis for such departure in writing or on the record.

(f) The court shall allocate examination costs among the parties based on ability to pay.

SECTION 2. Tennessee Code Annotated, Title 36, Chapter 6, Part 1, is amended by adding the following as a new section:

(a) In any contested custody proceeding under this part in which the court determines that the appointment of a guardian ad litem (GAL) is necessary, the court

shall order the child to be evaluated by at least one (1) qualified expert, unless the court makes written findings that such an examination is unnecessary to determine the child's best interests.

(b) The expert examination must be conducted by one (1) or more of the following licensed professionals:

- (1) A medical doctor;
- (2) A psychiatrist;
- (3) A psychologist;
- (4) A licensed clinical social worker;
- (5) A licensed professional counselor with mental health service provider

designation; or

(6) Any other mental health professional authorized by law to conduct diagnostic evaluations of minors.

(c) The expert shall submit a sworn written report to the court and to the parties.

The report must include:

(1) A summary of the child's relevant medical, psychological, emotional, and developmental history as permitted within the examiner's scope of practice;

(2) A description of the child's present mental, physical, emotional, and behavioral condition, including any symptoms of trauma, coercion, alienation, or undue influence;

(3) An opinion stating:

(A) Whether further evaluation, treatment, or services are recommended;

(B) The type and scope of any recommended evaluation or treatment; and

(C) The clinical basis for such recommendations; and

(4) Any other matters the court deems necessary or advisable in the child's best interests.

(d) A sworn examination report submitted under this section constitutes prima facie evidence of the child's condition and of the factors relevant to determining the child's best interests, which may be rebutted by competent evidence or upon a showing that the report is incomplete, inaccurate, or unreliable.

(e) The GAL shall consider the expert report in formulating the GAL's best-interest recommendation. If the GAL's recommendation materially departs from the expert's conclusions, then the GAL shall explain the basis for such departure in writing or on the record.

(f) The court shall allocate examination costs among the parties based on ability to pay.

SECTION 3. Tennessee Code Annotated, Title 37, Chapter 1, Part 1, is amended by adding the following as a new section:

(a) In any contested dependency and neglect proceeding under this part in which the court determines that the appointment of a guardian ad litem (GAL) is necessary, the court shall order the child to be evaluated by at least one (1) qualified expert, unless the court makes written findings that such an examination is unnecessary to determine the child's best interests.

(b) The expert examination must be conducted by one (1) or more of the following licensed professionals:

- (1) A medical doctor;
- (2) A psychiatrist;
- (3) A psychologist;

- (4) A licensed clinical social worker;
 - (5) A licensed professional counselor with mental health service provider designation; or
 - (6) Any other mental health professional authorized by law to conduct diagnostic evaluations of minors.
- (c) The expert shall submit a sworn written report to the court and to the parties.

The report must include:

- (1) A summary of the child's relevant medical, psychological, emotional, and developmental history as permitted within the examiner's scope of practice;
 - (2) A description of the child's present mental, physical, emotional, and behavioral condition, including any symptoms of trauma, coercion, alienation, or undue influence;
 - (3) An opinion stating:
 - (A) Whether further evaluation, treatment, or services are recommended;
 - (B) The type and scope of any recommended evaluation or treatment; and
 - (C) The clinical basis for such recommendations; and
 - (4) Any other matters the court deems necessary or advisable in the child's best interests.
- (d) A sworn examination report submitted under this section constitutes prima facie evidence of the child's condition and of the factors relevant to determining the child's best interests, which may be rebutted by competent evidence or upon a showing that the report is incomplete, inaccurate, or unreliable.

(e) The GAL shall consider the expert report in formulating the GAL's best-interest recommendation. If the GAL's recommendation materially departs from the expert's conclusions, then the GAL shall explain the basis for such departure in writing or on the record.

(f) The court shall allocate examination costs among the parties based on ability to pay.

SECTION 4. This act takes effect upon becoming a law, the public welfare requiring it.